

25LBCV01895 25LBCV01895

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25LBCV01895 Hearing Date: August 4, 2026 Dept: S28

BACKGROUND

On

June 26, 2025, Plaintiff filed a
lemon law complaint against Defendant.

On

April 30, 2026, Defendant filed the instant Motion for Summary Adjudication of
the Fifth Cause of Action for Fraudulent Inducement – Concealment.

As

of July 29, 2026, Plaintiff has not filed an opposition.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to

judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Analysis

A. Preliminary Matters

- i.
Request
for Judicial Notice

Defendant

asks the Court to take judicial notice of the Complaint in this matter. This is unnecessary as the Complaint is already part of this Court's record.

Nonetheless, the request is GRANTED.

B. Merits

i.

Fifth Cause of Action for Fraudulent Inducement

– Concealment

Fraud based on concealment requires

that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

Plaintiff's

fifth cause of action for fraudulent inducement by concealment is subject to a three-year statute of limitations. (CCP § 338.) A fraud cause of action accrues upon the complainant's discovery of the facts constituting the fraud. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 219–220 [information bulletin from vehicle manufacturer stating same model was equipped to cope with gasoline quality, and misrepresentations relating to fuel performance at time of sale, supported an issue whether vehicle purchasers could not have earlier discovered misrepresentation and failure to disclose].)

Defendant argues that Plaintiff's fraudulent

concealment cause of action is time-barred as of January 11, 2024, while Plaintiff filed this action on June 26, 2025. (Mot., p. 2.) Defendant contends that despite never reporting a transmission issue to AHM or any Honda dealer, Plaintiff claims that AHM committed fraud by concealing a transmission defect in the vehicle to induce the sale. Plaintiff alleges that the fraud occurred at the time of the sale on January 11, 2021, but she did not discover

the fraud until “shortly before filing this Complaint” on June 26, 2025. (See Compl. ¶¶ 24, 47-48.) Defendant argues that Plaintiff makes no attempt to explain how she was not negligent in failing to discover the fraud sooner and only discovering it after driving the vehicle for four years, nor has she alleged any facts or produced any evidence showing the time and surrounding circumstances of the discovery and what the discovery was.

Here, Defendant has met its burden of establishing the absence of a triable issue of material fact as to whether the fraudulent concealment claim is time-barred. Plaintiff filed the Complaint beyond three years after she alleges the fraud occurred, and Plaintiff fails to put forth any facts surrounding her delayed discovery of the fraud. Plaintiff also fails to oppose this Motion.

Thus, summary adjudication is GRANTED as to the fifth cause of action.

CONCLUSION

Defendant’s Motion for Summary Adjudication of the Fifth Cause of Action for Fraudulent Inducement – Concealment is GRANTED.